# XI. CYBERCRIME LAW OF THE PHILIPPINES

## Activity: Case Analysis – “Who is Liable?”

**Scenario:**

A student hacks into the school system to change grades but claims it was “just for fun” and no harm was intended.

## Tasks: Answer the following

1. **What specific violation under Republic Act No. 10175 was committed?**

- Section 4(a)(1) Illegal Access: The act of accessing the whole or any part of a computer system without right. Since the student is not a system admin or authorized to enter the grading portal's backend, the entry itself is a crime.
- Section 4(a)(3) Data Interference: It covers the intentional alteration, deletion, or corruption of computer data. By changing the grades, the student compromised the integrity of the school’s records.
- Section 4(a)(4) System Interference: If the hack caused the system to slow down or glitched it for other users, they could also be liable for hindering the functioning of the computer system.

2. **Does intention matter in determining liabilty? why or why not?**

No, In the context of special laws like RA 10175, the act is often considered malum prohibitum (prohibited because the law says so).

While a judge might consider "lack of malicious intent" as a mitigating factor during the sentencing phase, it does not erase the liability. The law focuses on the unauthorized act. If you break into a house "just for fun," you still committed trespassing. In the digital world, unauthorized access and data alteration are crimes regardless of whether you were trying to be the next Robin Hood or just a "script kiddie" having a laugh.

3. **What penalties may apply?**

- Imprisonment: For Illegal Access or Data Interference, the penalty is prision mayor (6 years and 1 day to 12 years).
- Fines: A fine of at least PhP 200,000 up to a maximum commensurate to the damage incurred.
- Institutional Discipline: On top of the legal case, the school’s Student Manual likely dictates expulsion for "grave misconduct" and "academic dishonesty."

4. **What is the ethical violation beyond the legal issue?**

- Violation of Academic Integrity: Grades are a measure of merit. By changing them, the student devalues the hard work of every other student who actually studied. It’s an act of unfairness.
- Breach of Trust: The school provides a digital environment for learning. Hacking it is a betrayal of the "End User License Agreement" (implicit or explicit) between the student and the institution.
- Professional Malpractice: As future IT professionals, we are supposed to be the "guardians" of data. Using your skills to "prune" or alter data for personal amusement is the opposite of the ACM or IEEE Code of Ethics, which mandates that we use our knowledge to benefit society and avoid harm.
- The "Rot" in the System: From a utilitarian perspective, the "fun" of one student is outweighed by the massive cost to the school to audit the database, fix the vulnerability, and restore trust in the grading system. In this case, the student's actions are the "defective" behavior that needs to be excised to save the credibility of the entire school.

**Short Justification**

1. Legal Basis: Data Integrity & RA 10175
Grading systems are "critical info structures," and RA 10175 focuses on Authorization, not intent. Bypassing controls constitutes Illegal Access, while altering grades is a direct attack on Data Interference. The law protects digital records as a "source of truth," making any unauthorized change a crime regardless of the motive.

2. The Doctrine of Malum Prohibitum
Under the Cybercrime Prevention Act, the prohibited act itself is the crime (malum prohibitum). "Fun" isn't a valid defense because the damage specifically the loss of system trust and the massive cost of forensic auditing is real and identical whether the hacker was malicious or just bored.

3. Deterrence & Proportionality
The heavy fines and jail time serve as a deterrent. In our networked society, a single "prank" can force a school to invalidate an entire semester or spend millions on recovery. The law treats these as serious offenses because digital interference has a catastrophic "ripple effect" on the community.

4. Ethical Frameworks
- Virtue Ethics: IT students must balance techne (skill) with phronesis (wisdom). Using skills to deceive rather than build is a fundamental failure of character.
- Utilitarianism: The student’s brief "fun" is outweighed by the collective harm. If grading integrity is lost, the value of the degree is diminished for every single graduate.